DIVISION BENCH ITEM NO.8

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA (CAA) No.05/ALD/2024 (First Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 4th June, 2024

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**BAYSTONE ESTATE PVT. LTD. & ORS. WITH GALLANTT LIFESPACE DEVLOPERS PRIVATE LIMITED**
UNDER SECTION	**230/232 OF COMPANIES ACT 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:
Sh. Rahul Chaudhary, Adv. *: For the Applicant Companies*

ORDER

Ld. Counsel representing the Applicant Companies is present physically.

1. Ld. Counsel representing the Applicant Companies states that this is a composite scheme of demerger and merger. He makes submissions that the Applicant Company Nos.1 to 7 and 11 are merging in Applicant Company No.8. Further, demerged division out of Applicant Company Nos.9 & 10, are merging in Applicant Company No.8. The remaining part of the Applicant Company nos.9 & 10 remain there, and therefore the Applicant Company Nos.9 & 10 would exist as such. The Applicant Company No.8 therefore becomes the Resulting Company.

2. He states that at page no.92 of the petition, the list of five Regulatory Authorities has been given, which includes the RD(NR), ROC, Official Liquidator, Reserve Bank of India and Income Tax Authorities.

3. Apart from this, the Ld. Counsel representing the Applicant Companies also states that the RERA may also be the relevant party particularly with respect to the Resulting Company no.8, who is in the business of Real Estate. The above authorities would then be relevant authorities for inviting reports.

4. Arguments heard. Order reserved.

-Sd- ***-Sd-***
(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**
4th June, 2024
Kavya Prakash Srivastava
(Stenographer)